Date: / / (YYYY / MM / DD)

ScienceX Inc. (サイエンスエックス株式会社)
Shinya Nakashima, Representative Director

Confidentiality Undertaking

This English text is a reference translation. In the event of any discrepancy, the Japanese version shall prevail.

The undersigned company (the "Recipient") undertakes as follows in receiving information on battery energy storage and other renewable-energy projects from ScienceX Inc. (サイエンスエックス株式会社; the "Discloser").

Article 1 (Confidential Information)
"Confidential Information" means all information on a project disclosed by the Discloser to the Recipient (including its location, price, the seller and other related parties, and materials) and the fact that the project was introduced to the Recipient. It excludes information that is publicly known, information that the Recipient lawfully held at the time of disclosure, and information lawfully obtained from a third party.

Article 2 (Confidentiality and No Use for Other Purposes)
The Recipient shall use the Confidential Information only to evaluate the project and shall not disclose it to any third party without the Discloser's consent (including by e-mail), except to its own officers, employees and professionals bound by a duty of confidentiality to the extent necessary for the evaluation, or where disclosure is required by law.

Article 3 (No Circumvention)
Without the Discloser's consent, the Recipient shall not communicate, negotiate or transact, directly or through a third party, with the seller, landowners or any other related party of a project introduced by the Discloser, in relation to that project. This does not apply to existing business or communications unrelated to the project, or to a project that the Recipient lawfully knew of from a source other than the Discloser before the introduction, provided that the Recipient has informed the Discloser of this.

Article 4 (Term)
This Undertaking is effective for three (3) years from the date of its submission.

Article 5 (Governing Law and Jurisdiction)
This Undertaking is governed by the laws of Japan, and the Tokyo District Court shall have exclusive jurisdiction in the first instance.

End

(Undertaking party)

Address: _____

Company name: _____

Title of representative: _____

Name of representative: _____ (signature / seal)